Harris County District Court

Cause No. 2025-CV-0022

Michael Wells, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	3-12-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant answers Plaintiff's Original Petition by generally denying each and every allegation contained in it, and demands strict proof theroef by a preponderance of the evidence, as permitted under Rule 92 of the Texas Rules of Civil Procedure.

As and for its affirmative defenses, Defendant states the following. First, Plaintiff's own negligence proximately caused or contributed to the collision, including failure to keep a proper lookout, failure to yield the right-of-way to oncoming traffic, and failure to control speed under the circumstances. Under Chapter 33 of the Texas Civil Parctice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may recover nothing if that percentage exceeds fifty percent.

Second, the collision was caused in whole or in part by the acts or omissions of persons or entities other than Defendant, including an unidentified third-party vehicle, and Defendant requests that the trier of fact assign each resposnible person a percentage of responsibility.

Third, Plaintiff's alleged damages were not proximately caused by the collision, and to the extent any injury pre-existed the collision or resulted from a subsequent, unrelated event, Defendant is not liable for it. Defendant further asserts its right to a credit or offset for any settlement amounts paid by any other party.